

PRIVATE COMPANY MANAGEMENT LIABILITY INSURANCE

INSURED’S CHOICE OF COUNSEL-AMENDED RETENTION

It is agreed that with respect to any **Claim** provided coverage under the Employment Practices Coverage (Part 2):

1. Section Part 6 Common Conditions B. Defense and Settlement of this Policy is amended by the addition of the following:
- B. To the extent legally permissible and where appropriate, the **Insurer** shall employ the counsel specified below to represent the **Insured** provided such counsel is experienced in the defense of similar claims and regularly practices in the venue within which the **Claim** is brought. The **Insurer’s** agreement to employ said counsel shall be, and remain, subject to the **Insurer’s** obligation to pay no more than the hourly rate(s) stated below and such counsel’s agreement to abide by any litigation guidelines and reporting requirements requested by the **Insurer**. Further, should a dispute arise, the **Insurer** reserves the right to make the final determination as to the selection of legal counsel as well as the right to discharge said counsel at any time and for any reason.

Firm Name: «FirmName»

Partner Rate: \$«PartnerRate» per hour

Associate Rate: \$«AssociateRate» per hour

Paralegal Rate: \$«ParalegalRate» per hour

In the event it is not legally permissible for the **Insurer** to employ said counsel or the **Insurer** discharges said counsel, and provided it is appropriate, the **Insurer** shall employ counsel to represent the **Insured**. The **Insured** may, at any time, consult with the **Insurer** with respect to the selection of counsel.

2. With respect to any **Claim** in which the counsel specified in Item 1. of this endorsement is employed to represent the **Insured**, the Retention specified in Item 5. of the Declarations is deleted and replaced with the following:

Employment Practices	
A. Insuring Agreement A-Employment Practices Liability	\$«EPLAgreeARetAmt» each Claim
B. Insuring Agreement B-Third Party Liability	\$«EPLAgreeBRetAmt» each Claim